

Calendar Line 1**Case Name:** *Melody Pomele v. Evergreen School District***Case No.:** 24CV430032

On December 12, 2024, the court sustained defendant Evergreen School District's (the "District's") demurrer to the complaint on the ground that the first through sixth causes of action were barred by the statute of limitations. The court granted leave to amend, and plaintiff Melody Pomele filed a first amended complaint ("FAC") on January 2, 2025. The District has now demurred to the FAC on the same grounds, arguing that Pomele failed to cure the pleading defect. Pomele's opposition to the second demurrer was due on July 16, 2025, but the court has not received any opposition in the file. Based on the papers received, the court agrees with the District that Pomele's amendments to the FAC do not successfully plead around the statute of limitations.

The demurrer is SUSTAINED without leave to amend.

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Calendar Lines 2-3

Case Name: *Francisco Carrascal et al. v. CSAA Insurance Exchange et al.*

Case No.: 20CV367997

I. BACKGROUND

Self-represented plaintiffs Francisco Carrascal and Thaweesap Uttho (“Plaintiffs”) filed this action against Guillermo Chavarria and Chavarria’s insurance company, Allstate Northbrook Company (“Allstate”), following a collision between their car and Chavarria’s car in 2019. Plaintiffs filed their initial complaint on July 9, 2020, a first amended complaint on September 14, 2020, and a second amended complaint on April 7, 2021. Plaintiffs and Chavarria filed a notice of unconditional settlement between them on March 17, 2023. More than a year after this settlement, Plaintiffs filed a third amended complaint (“TAC”) on July 29, 2024 naming their own insurance company, CSAA Insurance Exchange (“CSAA”), as a new defendant.¹

The TAC stated three causes of action: (1) negligence; (2) negligent infliction of emotional distress (“NIED”); and (3) breach of contract. CSAA, the only remaining defendant, brought a demurrer to the TAC, which the court sustained on December 12, 2024. The court determined that all three causes of action failed to state sufficient facts under Code of Civil Procedure section 430.10, subdivision (e).² While the court expressed doubts that any of the causes of action could be successfully amended, it granted Plaintiffs 20 days’ leave to amend. The order stated that it was only granting leave to amend the causes of action as to which the demurrer had been sustained; it did not grant leave to add new causes of action. (See December 12, 2024 Order, p. 12:1-8.)

Plaintiffs did not file any amended pleading within 20 days of the December 12, 2024 order. Instead, Plaintiffs filed a document entitled “Amendment to Pleading to Object to Demurrer” on December 23, 2024, with a noticed hearing date of May 15, 2025. This was followed by a document entitled “Strong Lawful[] Opposition to Demurrer [and] Amendment to Pleading Objecting [to] ‘Demurrer Grant’ Based in Fraud” on December 27, 2024. This latter document did not bear a hearing date. On January 23, 2025, CSAA filed an ex parte application to dismiss the action with prejudice, based on Plaintiffs’ failure to file an amended pleading in accordance with the December 12, 2024 order. Because of the documents filed by Plaintiffs, the court set CSAA’s application for a hearing on May 15, 2025, the same date noticed by Plaintiffs’ “Amendment to Pleading to Object to Demurrer.”

On April 17, 2025, Chavarria filed a motion for summary judgment, objecting to his continued inclusion in the TAC as a defendant, even after his unconditional settlement with Plaintiffs. That motion was set for hearing on July 29, 2025. The court has not received any timely opposition to this motion. (See Code Civ. Proc., § 437c, subd. (b)(2).)

¹ Previous versions of the complaint erroneously referred to “AAA Insurance” as a named defendant, a party that was never served. On August 1, 2024, CSAA was finally deemed served with the summons and complaint—via a notice of acknowledgement and receipt—more than four years into this case.

² The court takes judicial notice of the December 12, 2024 order on its own motion pursuant to Evidence Code section 452, subdivision (d).